

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ



جُمْهُورِيَّةُ مِصْرَ الْعَرَبِيَّةِ

رَأْسُ الثَّانِيَّةِ الْجُمْهُورِيَّةِ

الْجَزَائِرَةُ الرَّسْمِيَّةُ

The price is 4 pounds.

Year	Rabi' al-Awwal 1442 AH, issued on the 2nd,	Issue 42
Sixty-third	AD) corresponding to (October 19, 2020	Repeated (C)

Law No. 206 of 2020 issuing the Unified Tax Procedures Law

In the name of the people

president

The House of Representatives has decided on the following law,
which we hereby

promulgate: **(Article 1)** The provisions of the accompanying law shall apply to the procedures added tax, the state's financial resources development for assessing and collecting income tax, value-added tax, stamp duty, and any tax of a similar nature or that is essentially the same as or replaces these financial obligations, except where a specific provision exists in the law regulating each of them.

And insofar as it does not conflict with

(Article Two)

Each of the procedures for assessing and collecting taxes stipulated in the article of the accompanying law shall apply to any procedures not completed before the date of implementation of this law. The first of this law was valid under an existing law and remains valid, and the provisions

(Article Three)

The text of paragraph four of Article (63) of the Income Tax Law issued by Law No. 91 of 2005

shall be replaced by the following text: The amounts paid in

application of this system shall be settled when submitting the annual declaration stipulated in Article (31, Clause/C) of the Unified Tax Procedures Law, and the taxpayer shall be obligated to pay the remaining part of the tax due based on the declaration after deducting what he has previously paid in advance payments, in addition to an annual return calculated according to the credit and discount rate announced by the Central Bank, excluding fractions of a month and a pound.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 3

(Article Four)

Articles No. (6, excluding the first paragraph; 10, paragraphs three and four; 17; 18; 19; 20; 25; 26; 37) of the Stamp Tax Law issued by Law No. 111 of 1980 are hereby repealed, as are Articles No. (15; 69; 74; 75; 76; 77; 78; 79, last paragraph; 80, second paragraph; 82; 83; 84; 87; 91, excluding the last paragraph; 95) Except for the last paragraph, 96, 97, 98, 99, 100, 101, 102, 103, 104, 106, 107, 108, 112, 113, 114), and Chapter Six of Book Six, except for Articles (126, 135 except for the third paragraph, 137, 138, 148) of the Income Tax Law issued by Law No. 91 of 2005, as well as Articles (12, 13, 14, 15 except for the second paragraph, 16 the third and fourth paragraphs, 19, 20, 31 the first paragraph, 34, 35, 48, 50, 51, 53), and Chapter Three of Part Four, except for Article 62, and Articles (63 the first paragraph, 64) are repealed " 7, 9, 11 Except for paragraphs 1 and 2, and clauses 66, 68, 70, Value Added Tax Law issued by Law No. 67 of 2016 **(Article Five)** , the Minister of Finance shall issue the executive regulations for the accompanying law within six months of its effective date. Until these regulations are issued, the regulations and decisions currently in force shall remain in effect, provided they do not conflict with its provisions.

(Article Six)

This law shall be published in the Official Gazette and shall come into effect on the day following its publication.

This law shall be stamped with the State Seal and implemented as one of its laws.

Rabi' al-Awwal 1442 AH. Issued at the Presidency of the Republic on

2020). the 2nd (corresponding to 19th October

Abdel Fattah al-Sisi

Unified Tax Procedures Law, Chapter

One: General

Provisions

(Section One)

Definitions

Article (1):

For the purposes of this law, the following terms and expressions shall have the meanings

assigned to them below:

Minister of Finance.

-1 The Minister:

-2 Head of the Authority: Head of the Egyptian Tax Authority.

-3 Tax Law: Income Tax Law, Value Added Tax Law, State Resource Development Fee, Stamp Duty,
or any other law that imposes a financial levy of a similar or comparable
nature.

These taxes, or replace them. In essence with

The Egyptian Tax Authority.

-4 Interest:

Any financial obligation, regardless of its basis or the law that governs it,

-5 Tax:

The department is responsible for linking and collecting them.

-6 Other amounts: Any amount other than tax that the tax authority is obligated to collect or deduct in
any form, regardless of its name or the document it is issued with.

This includes the legally mandated delay fees under which this is done.

Additional taxes, compensation, and financial penalties.

The natural or legal person subject to the tax imposed

-7 The financier:

Tax law.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 5

The natural or legal person, whether private or public, who is liable for collecting and remitting the tax to the authority, or a merchant or provider of a taxable good or service whose sales have reached the registration threshold stipulated in the tax law, and every importer, exporter, or distributor of a good or service whose transactions, as well as every producer of taxable goods, regardless of size, or provider or importer of a good or service stipulated in the schedule attached to the tax law, regardless of size.

-8 The person in charge:

The specified time period for which the tax return is submitted according to the

For the tax law. -10

The tax return: The form or statement that replaces it and which includes all the information and data specified for the purposes of tax assessment, for a specific tax period.

(Chapter Two)

Language

Article (2):

The Tax Authority may accept data, information, records and documents related to the tax, provided that they are accompanied by a translation into Arabic from the tax authority in any language.

Approved by the department.

Chapter Two:

Rights and Obligations of Taxpayers and Others, and the Organization of the Tax

Administration (Section One): Rights of Taxpayers

Article (3):

Subject to the provisions of the tax law, this law guarantees the following rights to

those concerned: (a) Awareness of the

provisions of the tax law. (b) Obtaining tax forms and publications.

(c) Notification of tax measures taken against him in any form

(d) The notification stipulated in this law. (e) Reviewing the

tax file. (f) Verifying the identity of employees and

their official assignments. (g) Receiving written responses to inquiries

previously submitted by the taxpayer or others regarding their tax status. (h) Maintaining the confidentiality of tax

and technical information. (i) Being present during field

inspections. (j) Refunding taxes paid in excess or in error. (k) Other rights

guaranteed by this law or the tax law. **Article (4):**

In completing transactions that have tax implications, the taxpayer or

person liable for taxation who wishes to do so must submit a written request to the head of

the Tax

Authority to clarify its position regarding the application of the provisions of the Tax Law to those transactions.

The request must be submitted complete with all the required information and accompanied by the following documents: 1-

The name of the taxpayer or person liable for taxation and their unified tax registration number. 2- A statement of the

transaction and its tax implications.

The documents, contracts, and accounts related to the transaction. Pictures³ -

The head of the department will issue a decision regarding the request within thirty days from the date of submission.

The tax authority must provide all required documents and may request additional information from the taxpayer or obligated

party during that period. The decision is binding on the tax authority unless, after its issuance, elements of the transaction that

were not presented to it before the decision

were revealed. **(Chapter**

Two) Obligations of Taxpayers, Obligated Parties, and Others

Article (5):

Taxpayers, those liable for taxes, and others must comply with the provisions of this law and the tax law, and in

particular the following: (a) Notification of the

commencement of activity and registration with the Authority.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 7

(b) The obligation to maintain paper or electronic books and records, and to keep them for the prescribed legal period, and to issue tax invoices in accordance with the provisions of the laws and regulations.

(c) Submitting the tax return on the form prepared for that purpose. (d) Enabling the employees of the Authority to perform their duties regarding the procedures of review, examination, collection and control in relation to the application of the provisions of this law, and the tax law.

(e) Notifying the authority of any changes to the activity or establishment during The legally specified deadline.

The interest, whether it is the concerned party or the one who (and) determines who is responsible for dealing with him and who legally represents him.

(g) Calculating the tax correctly in accordance with the tax law and regulations and the decisions implementing it

(h) Paying the tax in the legally prescribed manner and within the specified timeframe. (i) Including the unified tax registration number in all correspondence and transactions with the Tax Authority or with third parties, in accordance with the provisions of this Law or the Tax Law. (j) Fulfilling any other obligations stipulated in this Law or the

Tax Law. **Article (6):** Every person who, by virtue of their position, jurisdiction, or work, has a role in assessing or collecting the tax stipulated in the Tax Law, or in adjudicating matters related thereto, is obligated to...

Disputes are subject to professional confidentiality. No employee of the department whose work is not related to tax assessment or collection may give any information or disclose to others any paper, statement, file or other except in cases permitted by law.

Data from tax files may only be released upon a written request from the taxpayer or the person liable for payment, or pursuant to a provision in any other law. Providing data to the transferee of the establishment, or exchanging information and data between revenue-generating bodies affiliated with the Ministry of Finance, in accordance with regulations issued by ministerial decree, is not considered

(7): Those responsible for managing funds, and all a breach of confidentiality. **Article** companies, bodies, establishments, owners of commercial and non-commercial professions, and other taxpayers or those obligated to pay, are obligated to provide the employees of the department who have the capacity of judicial officers, upon each request, the books that the Commercial Law or other laws require them to keep, as well as other documents, books, and attached documents, and income and expenditure documents, whether paper or electronic, for the purposes of verifying the implementation of all the provisions stipulated by the tax law, whether with respect to them or other taxpayers or those obligated to pay.

It is not permissible to prevent the aforementioned employees of the department from accessing such books, records, documents, revenue and expenditure records, and other materials, whether paper or electronic, provided that the access is granted at their location and without the need for prior notification.

Article (8): The specialists

in ministries, economic and service authorities, government departments, local administrative units, and other public legal entities, professional, sports, and artistic unions and federations, and others whose jurisdiction includes granting a license or certificate to practice a specific trade, industry, craft, or profession, or whose jurisdiction includes granting a license to

To construct a property or to enable the use of a property for a trade, industry, craft, or profession, the relevant authority must be notified upon granting any license or certificate, providing the applicant's details and name, within a maximum period of the end of the month following the month in which the license or certificate was issued, using the forms specified in a ministerial decree. The aforementioned license grants a privilege, obligation, or necessary permission and is considered valid for practicing the trade, industry, craft, or profession.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 9

Article (9):

Every owner or beneficiary of real estate is obligated to notify the competent tax authority of the use of their property, or part thereof, for a taxable activity, within thirty days from the date of use. **Article**

(10): Traffic

departments

are obligated to refrain from renewing or transferring a taxi vehicle license unless proof of payment of the required fees is provided. **Article (11):** All establishments, institutions, entities, and bodies, whether subject to tax, exempt from it, or not subject to it, are obligated to provide the tax authority's employees who have judicial powers, upon request, with their accounting books and anything else the authority requests to be submitted.

Documents.

Article (12):

Related persons. Every person who has commercial or financial transactions with the interest shall

submit the following documents related to his commercial and financial transactions for the purpose

of pricing the transactions: Members of Group **(A) Main file:** It includes the necessary information about all related persons.

(b) Local File: This includes the internal transactions of the local financier and their analysis. **(c) Country-by-Country Report:** This includes information relating to the group of related persons concerning the distribution of the group's income worldwide, taxes paid by the group, number of employees, capital, retained earnings, and tangible assets.

The group in each country, identifying the countries in which the group carries out its activities, as well as indicators related to the location of economic activity across the group of related persons.

submitting a country-by-country report as The Minister or his designee may grant exemptions from

referred to, in accordance with the circumstances of each company and in line with international practices.

In the event of a breach of the obligation stipulated in the first paragraph of this article, the authority shall

have the right to establish pricing rules as it deems appropriate, without prejudice to any other right, in accordance

with the provisions of the implementing regulations. The company is appealing and objecting to the decision of the conciliation authority.

This law applies.

A person subject to the provisions of the first paragraph of this article, who has related parties during the tax

period with a value of eight million Egyptian pounds, is exempt from exceed the total value of his transactions does not

the provisions of clauses (a) and (b) referred to above. This amount may be increased by a decision of the Minister.

The guidelines

issued by the Minister shall specify the rules and procedures governing what is stated in the first paragraph

of this article. **Article (13):** The documents

stipulated in

Article (12) of this law must be submitted as follows: **(a) Main file:** according to the date of submission of

the main file to the

tax authority.

(b) The filing of the annual tax return in the country of residence of the parent entity by the parent company

The funder in Egypt : within two months from the date of submission

y of the group of related

persons. **(c) A report at the country**

level separately: within one year from the end of the tax year relating to the examination and assessment.

Related persons: Every person who has commercial or financial transactions with related persons that are

not declared, in the event of non-disclosure, is obligated to pay the tax authority an amount equivalent to (1%) of the

value of the transaction, in the event of non-disclosure, according to the tax return form.

Transactions

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 11

Article (14):

The authorities responsible for licensing the printing, publishing, registration, or deposit of books, writings, artistic works, and other materials, or for advertising or publishing by technological means via websites or other platforms, are obligated to notify the relevant department in each case of the author's name and address, the title of the book, work, or other material, or the name and address of the applicant for advertising or publication, within a maximum period of the end of the month following the month in which the printing, publishing, or advertising license was issued, using the form issued by a ministerial decree. The provisions of this article do not apply to the Ministry of Defense.

Article (15): Without prejudice to the provisions regarding the confidentiality of accounts stipulated in the various laws, Government agencies, including the Illicit Gains Authority, the Central Agency for Public Mobilization and Statistics, local government units, public bodies, public sector companies, public business sector companies, unions, and federations, shall enable tax authority employees with judicial powers to access any tax-related data and documents they require, provided this does not conflict with national security requirements. (Chapter **Three**) **Organization of the Tax Administration**

Article (16):

As an exception to the provisions of the Civil Service Law issued by Law No. 81 of 2016, the Minister may establish a special system for rewarding employees of the Authority based on their performance rates and the volume and level of their work achievements, without being bound by any other law or system. This system shall be approved by the Prime Minister. The State's general budget may include the allocation of funds to contribute to the social and health care funds for employees of the Authority and their families. The funds stipulated in the second paragraph of this article shall have legal personality. Independent legal entity.

Article (17):

The Minister may authorize the Head of the Department to contract in accordance with the provisions of the Law Regulating Contracts Concluded by Public Entities issued by Law No. 182 of 2018, regarding securing the Department's needs for premises, equipment, tools, and devices necessary for the proper functioning of the work.

Article (18):

The department may appoint representatives from among its employees to ministries, government departments, local administration units, public legal entities, and public sector companies. The tax authority's representative is responsible for monitoring the proper implementation by these entities and companies of the provisions of the tax law and this law, and for verifying that these entities pay taxes in accordance with these provisions.

Tax laws.

They shall have proof of any violations that occur, in accordance with official reports, and the necessary legal procedures shall be taken regarding them.

Article (19):

decisions, it shall be the application of the provisions of the tax law and its implementing regulations and Employees designated by a decision of the Minister of Justice, in agreement with the Minister of Finance, shall have the authority of judicial officers with regard to documenting violations of the provisions of each of these regulations and taking the prescribed measures concerning

such violations. **Article (20):** Employees of the department are prohibited from having any direct or indirect working relationship with any accounting or auditing firms, law firms, or other establishments with Those charged with respect to the application of the provisions of this law, whether professional or any of the taxpayers, or the tax law.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 13

Article (21): It is

prohibited for an employee of the department to carry out or participate in any tax procedures concerning any person in the

following cases:

(a) The existence of a familial relationship up to the fourth degree between him and that person. (b) The

Financial relationships between him and the person to whom the procedure pertains and existence of an interest of the

taxpayer or one of his relatives up to the third degree. (c)

If the direct supervisor decides that the employee should not carry out any tax procedures related to that person due to any conflict

of interest. **Article (22):** In lawsuits filed by the taxpayer, the State Lawsuits Authority shall exercise

its jurisdiction in

reviewing the case, assisted by a representative from the Tax Authority. The court or the State Lawsuits Authority may summon

one of the competent employees of the Tax Authority who has the capacity of judicial officers

to appear before the court or the Authority, as the case may be, to clarify the technical aspects related to the tax in dispute. The

summoned employee is obligated to appear at the time and place specified in the notification, and any clarifications or opinions he provides

before the court shall not be considered a judicial admission or evidence against the Tax Authority.

The Authority may assign any of its employees with judicial police powers to appear before the Public Prosecution, the State

Commissioners Authority, the Experts Authority, and all committees competent to consider tax disputes. **Article (23):** Without prejudice to the

provisions of the Law on the Reorganization of the

Administrative

Prosecution and Disciplinary Trials issued by Law No. 117 of 1958, the Administrative Prosecution Authority shall investigate

complaints filed against Authority employees with judicial police powers or members of appeal committees from among the Authority's

employees regarding their technical work, after an examination conducted by the Authority.

Or the Ministry of Finance, based on a request from the Administrative Prosecution Authority, and the aforementioned examination report

shall be taken into consideration in the outcome of the handling of those complaints.

Article (24):

An employee of the department whose service has ended for any reason may not attend, participate, plead, or represent any of the taxpayers or those liable for taxes, whether in person or through an agent, in any of the tax files in which he previously participated in examining, reviewing, or taking any tax assessment procedure, within five years from the date of termination of his service.

Chapter Three: Tax Registration (Chapter One)

Registration

Article (25):

Every taxpayer or person liable for taxation is obligated to submit a registration application to the competent tax office within thirty days from the date of commencement of business activity or from the date of becoming subject to value-added tax, as applicable. This application shall be submitted on the prescribed form, accompanied by the necessary documents as specified in the executive regulations of this law, either manually or by any legally admissible electronic means.

The tax office shall review the registration application stipulated in the first paragraph of this article. If it finds that the application does not contain the required data, it shall notify the taxpayer or person liable for taxation, using the form prepared for this purpose, to complete the data within fifteen days.

From the date of notification by any of the means stipulated in the first paragraph of this article.

If the taxpayer or the person responsible does not submit the aforementioned registration it, and notify him request, the tax office will register him based on the data or information available to of the registration within five working days, without prejudice to criminal liability.

Those who are not taxpayers and whose sales have not reached the legally prescribed registration limit are obligated to register on the electronic system of the Tax Authority in return for an annual fee determined by the Minister of

Finance, not exceeding five hundred pounds. The collection of this fee stops when the registration limit is reached.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 15

(Chapter Two) Tax

Registration Number

Article (26):

The tax authority assigns a unified tax registration number to each taxpayer subject to all types of taxes. The tax authority, the taxpayer, and other entities and establishments are all obligated to use recorded on all notifications. this number in all transactions, and it is

Records, documents, invoices, and any other correspondence.

(Chapter Three) Tax

Card

Article (27):

The competent tax authority is obligated to issue a tax card to the registered taxpayer within five working days from the date of the application for the card on the form prepared for this purpose. It must also grant registered taxpayers a certificate confirming their registration within five working days from the date of registration. The validity period of the tax card or registration certificate shall be five years from the date of its issuance. The taxpayer has the right, upon expiry of its validity period, or if it is lost or damaged, to request its renewal or obtain a replacement for the lost or damaged card, as the

case may be, on the form prepared for this purpose. No

governmental or non-governmental entity may deal with the taxpayer except through the tax card or registration certificate, as the case may be, provided that the tax card is included in the procedures for establishing, licensing to practice a profession or activity, or renewing it. **Article (28):**

The taxpayer

or the person

obligated to pay shall be obligated to notify of any changes that occur to the data previously submitted upon registration in accordance with Article (25) of this Law, within thirty days from the date of the occurrence of this change. The burden of notification in the event of the death of the taxpayer or

the person obligated shall fall on his heirs within sixty days from the date of death.

Chapter Four:

Tax Returns (Section

One) The Person

Obligated to Submit a Tax Return, and the Submission Mechanism

Article (29):

is obligated to submit to the competent Every taxpayer, or person legally representing him,
tax authority a declaration for the tax period on the form prepared for this purpose.

The tax return stipulated in the first paragraph of this article, along with invoices, documents, and
y other papers and data required by the tax law and this law, shall be submitted in an approved digital format
with an electronic signature, in accordance with the regulations issued by a ministerial decree. This decree
shall specify the timetable for commencing compliance with this provision, according to the nature of the
categories of taxpayers and those liable for taxes addressed therein, within a period not exceeding two
years from the date of entry into force of this law. This period may be extended for
a similar period. The aforementioned tax return must be complete with the data specified in the indicated form.

To him, and the tax due is paid according to the declaration.

This declaration shall not be used as evidence against the tax authority if it is not signed or if the
data in the form stipulated in the first paragraph of this article is not completed.

The taxpayer shall pay a fee, the amount of which shall be determined by a decision of the Minister,
for using the electronic system, provided that this fee does not exceed one thousand
pounds
annually. **Article (30):** An electronic signature, within the scope of the provisions of the Tax Law and
this Law, shall have the same legal validity as signatures in the provisions of the Law of Evidence in Civil and
Commercial Matters, if the conditions stipulated in Law No. 15 of 2004 are observed in its creation and completion.

By regulating electronic signatures and establishing the Information Technology Industry Development Authority, and the
technical and technological controls specified in its executive regulations.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 17

(Chapter Two) Tax

Return Filing Deadlines

Article (31):

The tax return stipulated in Article (29) of this law must be submitted within the

following dates: (a)

Monthly returns: Every

taxpayer must submit to the competent tax office a monthly return on the tax in all cases, on value added tax, and the schedule tax due or one of them, according to the form prepared for this purpose during the month following the end of the tax period.

The taxpayer must also submit the declaration even if he has not made any sales or provided any services.

Subject to value-added tax or schedule tax during the tax period.

The head of the department or his delegate may, with respect to exporters, importers, or service providers who export, import, or perform the service once or twice a year, approve the submission of a declaration for the month in which the export, import, or service is performed, if it is accompanied by a sale during this period or payment for the service during the same period, without the need to submit a monthly declaration. **(b) Quarterly**

declarations: Business

owners and those obligated to pay income subject to tax on salaries and the like,

including companies and projects established under the free zone system, are obligated to

do the following: Submit

a quarterly declaration to the competent tax authority in January, April, July and

October of each year on the form prepared for this purpose, showing the number and total salaries and the like paid to them during the employees and their complete data for the previous three months, the amounts deducted on account of the tax and the amounts paid for the same period, a copy of the payment receipts, and a statement of the amendments

that have occurred to these employees by increase or decrease

The worker shall be given, upon his request, a statement showing his full name, the amount and type of income.

The value of the withheld tax.

A final tax settlement return must be prepared at the end of the year and submitted to the tax office, showing the total income received by the employee during January of each year, including all legally mandated deductions and exemptions. The employer or the party responsible for paying the income must pay any outstanding tax differences, without prejudice to their right to claim from the employee any amounts owed. **(c) Annual Returns:** Every taxpayer subject to

the provisions of the

Income Tax Law is obligated to submit to the tax office

The competent tax authorities shall submit an annual tax declaration on the form prepared for this purpose and its attachments.

The declaration submitted without fulfilling all the tables and data contained in the declaration form and its attachments within

the specified deadline for submitting the declaration shall not be considered valid.

This declaration must be submitted within the

following deadlines: before April 1st of each year following the end of the tax period for

the preceding year for natural persons;

before May 1st of each year or within four months following the end of the fiscal year for

legal entities.

The taxpayer is obligated to submit a tax return for any periods during which they are exempt

from tax. Submitting the return for the first time constitutes notification of the

commencement of business activity. The taxpayer is exempt from submitting a

return in the following cases: if their income consists solely of salaries and related payments.

If his income is limited to salaries and related income, and his net income from real estate

does not exceed the amount specified in the tax-exempt bracket of the

Income Tax Law and its amendments.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020

(d) Special deadlines for filing tax returns: In the event

of the death of the taxpayer during the tax period, the heirs, the executor of the estate, or the liquidator, as the case may be, must file the tax return for the period or periods prior to the date of death for which the filing deadline had not yet arrived, within ninety days from that date, and the tax due from the taxpayer shall be paid from the estate. A taxpayer whose residence in Egypt is interrupted must file the tax return at least sixty days before the interruption of their residence, unless this interruption is due to a sudden reason beyond their control.

Stop completely submitting the declaration In Egypt And the financier who ceases to conduct his business

The taxpayer must submit a tax return within sixty days of the date of cessation. Furthermore, in the event of transferring all or part of the establishment, the taxpayer must submit, within sixty days of the transfer date, a separate declaration detailing the results of operations at the transferred establishment, along with the necessary documents and data to determine profits up to the date of transfer.

The data from this declaration must be included in the annual tax return of the transferor.

The declaration stipulated in clauses (a) and (b) of the first paragraph of this article shall be signed by the person obligated to submit the declaration or their representative. The declaration stipulated in clause (c) of the same paragraph shall be signed by the is prepared by an independent accountant, the taxpayer or their legal representative. If the declaration stipulated in clause (c) accountant must sign it along with their legal representative; otherwise, the declaration shall be considered null and void. The declaration stipulated in clause (c) of the first paragraph of this article must be signed by an accountant registered in the register of accountants and auditors in accordance with the relevant law, with respect to corporations, cooperative societies, and natural persons.

Therefore

Partnerships if the turnover of any of them exceeds two million pounds annually.

Article (32):

The taxpayer or the person obligated to submit their tax return is required to do so through electronic means, as permitted by law. Available after obtaining the secret password and an electronic signature in accordance with the provisions of Law No. 15 of 2004 regulating electronic signatures and establishing the Information Technology Industry Development Authority, and he is considered fully responsible for what he submits.

In all cases, the taxpayer is obligated to pay the amount of tax due as of the date of its submission, after deducting the taxes withheld or collected and the declared payments in the same submission and the interest due on them if any. In the event that the withheld taxes exceed the amount of tax due, the excess shall be used to settle previous tax dues. If there are no previous tax dues, the tax authority is obligated to refund the excess unless the taxpayer requests in writing to use this excess to pay any future tax dues.

The submission of the taxpayer's return in the manner stipulated in this article is considered equivalent to its submission to the competent tax authority. **(Chapter Three)**

Amended Tax Return

Article (33): If

the taxpayer discovers during the year following the expiry date specified for submitting the annual declaration stipulated in Clause (C) of the first paragraph of Article (31)

Anyone who makes an error or mistake in their tax return submitted to the competent tax authority under this law must submit an amended tax return after correcting the error or mistake.

If the taxpayer submits the amended return within thirty days of the deadline.

Legally, for filing a declaration, the amended declaration is considered as the original declaration.

Banks, companies, public sector units, public business sector companies, and public legal entities that conduct activities subject to tax shall submit a final declaration on the form prepared for this purpose within thirty days from the date of approval of their accounts by the general assembly, and the tax differences shall be paid accordingly.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 21

In the event of submitting an amended tax return in accordance with paragraphs two and three of this article,

an error or omission in the return shall not be considered tax evasion.

the previously submitted return within the prescribed The taxpayer may submit an amended return for

time limit. The taxpayer's right to submit an amended return shall be forfeited in the following two cases:

-1 Discovery of a case of tax evasion.

-2 Notification of the commencement of examination procedures in accordance with the provisions of paragraph one of Article (41)

From this law.

Article (34):

If a taxpayer submits an amended tax return that includes a tax liability lower than the actual tax liability,

they are not entitled to a refund or settlement of the tax difference until after... y The statement included in the

original declaration requires the department to review and verify the validity of the refund or settlement, within six

months from the date of submitting the refund or settlement request.

Chapter Five

Tax Control

Chapter One

Tax proof

Article (35):

Companies and other legal and natural persons specified by the executive regulations of

this law who sell goods or provide a service must register all their purchases and sales of goods

and services on the electronic system whose specifications, technical standards, and rules of

operation are determined by the executive regulations of this law, in a way that ensures the

authority can track sales movements on an ongoing basis, determine their size and value, identify

the parties involved in the transaction, and other matters necessary for linking and collecting the prescribed tax.

The system stipulated in the first paragraph of this article must include the registration of all receipts, whether cash or electronic, that clearly show the value of sales of goods and services, the tax due, and the issuance of an electronic invoice for each sale transaction. This invoice must be electronically signed by the issuing entity and must meet the security standards specified in the **Article (37)** of executive regulations of this law. It must also include the data stipulated in this law. Companies and other persons mentioned in the first paragraph of this article may contract with a company licensed by the Minister to implement the aforementioned electronic system, provide its requirements, maintain it, and provide training on its use. The contracted companies are responsible for monitoring compliance with the system and the integrity of its outputs, particularly the issuance of a valid electronic invoice for each sale transaction, and for providing the tax authority with a monthly electronically signed report confirming this. The license will be granted to companies that implement the aforementioned electronic system.

This license may be revoked in accordance with the regulations and conditions stipulated in the executive regulations of this law. **Article (36):** Paper documents issued by or received by the department before the effective date of this law shall retain their legal validity until the electronic system is implemented, at which point they shall be replaced by digital documents that perform the same function, are copies of them, or have a subsequent effect. **Article (37):** Every taxpayer, obligated party, and others required by law to issue

The item is for sale A tax invoice or professional receipt for those practicing a liberal profession, when providing or delivering the service, as applicable, in accordance with the following

regulations: (a) The invoice or receipt must be in original and copy. The original is given to the buyer.

The image is kept by the financier or the person in charge.

(b) The invoice or receipt must be numbered sequentially according to the dates of its issuance.

And free from erasures, scrapings, or insertions.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 23

(c) The invoice or receipt must include the following information: the

invoice or receipt serial number.

Date of issue. Name,

address, and registration number of the financier or payer.

The buyer's name, address, and registration number, if applicable.

A description of the goods sold or services rendered, their value, and the VAT rate.

Or the prescribed schedule tax and its value, along with a statement of the total value of the invoice or

receipt. Any other data specified by the executive regulations of this law.

The executive regulations of this law shall specify the data that must be included in the receipt.

The professional referred to.

The Minister may establish simplified systems for calculating Value Added Tax and Schedule Tax for

establishments unable to issue tax invoices for each sale. The invoice or receipt stipulated in the first paragraph must

be issued in accordance with the regulations and provisions that...

This material is available in electronic format.

It is defined by the executive regulations of this law.

The Minister may, by decree, determine a specific format for the electronic tax invoice for a certain category.

Specific or for specific categories of taxpayers or those obligated to

pay. In the event of cancellation of the invoice or receipt, the taxpayer or those obligated to pay is required to keep

and all copies thereof. the original canceled receipt or invoice

Electronic receipts issued through electronic means are considered valid.

The various types of receipts and basic data are specified in the executive regulations of this law.

Which must be available, and other procedures and control systems necessary for its implementation.

Article (38):

Subject to the provisions of the Law on Joint Stock Companies, Limited Partnerships by Shares, Limited Liability Companies and Single Person Companies issued by Law No. 159 of 1981, every taxpayer who engages in commercial, industrial, craft or professional activity, if his annual turnover exceeds five hundred thousand pounds, shall be obligated to keep the regular accounting records and books stipulated in the Commercial Law issued by Law No. 17 of 1999, manually or electronically.

Every taxpayer or obligated party must maintain electronic accounts showing annual revenues and expenses. The Minister shall issue a decision regulating the maintenance of these accounts and their controls, as well as the controls necessary for the transition from a paper-based accounting system to an electronic accounting system. In all cases, the taxpayer or obligated party is obligated to retain records, books, and all documents, including copies of invoices, for a period of five years following the tax period for which the return is submitted. The Minister may establish simplified rules for maintaining books and records for categories of taxpayers or obligated parties, as determined by a decision

issued by him. **Article (39):** The burden of proof rests with the Tax

Authority in the following two cases: (a) Correcting, amending, or disregarding the return if it was submitted in accordance with the conditions and procedures stipulated in this Law. (b) Adjusting the assessment in accordance with the provisions of the tax law.

Article (40): The burden of proof falls on the taxpayer or the person liable in the

following cases: (a) The authority makes an estimated assessment of the tax if it appears that the data submitted by the taxpayer and on which the assessment was based is incorrect, or he did not submit the data prescribed by law in the cases in which it is permissible to do so according to this law.

(b) The taxpayer corrects an error in their tax return. (c) The taxpayer objects to the content of a report prepared by an officer of the tax authority who has the power of judicial seizure.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 25

(Chapter Two)

tax audit

Article (41):

The competent tax authority must notify the taxpayer by registered mail with return receipt requested, or by any legally admissible electronic means, or by any written means that ensures notification, of the date, location, and estimated duration of the audit at least ten days in advance, using the form prepared for this purpose. Exceptions may be made to the audit procedures in cases where...

And that is with the approval of y The Treasury's rights are at risk or there is a suspicion of tax evasion. The head of the department, based on a proposal from the head of the relevant tax office, submits a memorandum that includes the reasons justifying this procedure.

the data, copies of documents and The taxpayer or the person obligated to pay is required to provide records, including lists of customers and suppliers, requested by the tax authority in writing, within fifteen days of the date of the request. The head of the tax authority or his designee may extend this period for a similar period if the taxpayer or the person obligated to pay provides sufficient evidence of the difficulties he or she encounters in providing the data or records.

Required documents and paperwork. This data and images.

Article (42):

Employees of the department who have the authority of judicial officers have the right to enter the premises of the taxpayer or the person responsible for the tax during the employee's working hours without prior notice. If it is necessary to enter these premises after working hours, a permit must be issued for this by the head of the workplace.

The judicial officer must document what is done or revealed to him in a written report in accordance with the decision issued by the Minister.

(Chapter Three)

Notification of Connection

Article (43):

The Tax Authority shall notify the taxpayer of any amendment or assessment of the tax on the form prepared for this purpose by registered mail with return receipt requested, or by any electronic means that is form to the taxpayer's place of work or office, in accordance with a record signed by the taxpayer or their representative. If the Tax Authority determines that there are revenues that the taxpayer or the person liable for tax has not been previously notified of, they shall be assessed and notified of the amendment on the form prepared for this purpose by any of the means stipulated in the first paragraph of this Article. **Article (44):** In all cases, the Tax Authority may not make an assessment or amendment of the tax except within five years from the date of expiry of the legally specified period for submitting the return for the period. Tax, and the period is six years in cases of evasion. The statute of limitation is interrupted for any of the reasons stipulated in the Civil Code, or by notification of the tax assessment, or by warning the taxpayer or the person responsible for paying it, or by referral to the appeals committees.

Chapter Six:

Collection

(Section One): Tax Payment

Article (45):

The collection of unpaid tax, late payment penalties, and additional tax due under the tax law shall be through enforceable claims issued in the name of those who are legally obligated to pay or supply it, without prejudice to their right to recourse against those who are indebted to it, on the forms prepared for this purpose, which are issued by a decision of the Minister. These claims shall be sent by registered letter with acknowledgment of receipt or by any electronic means that has legal validity as evidence, or they shall be delivered to the workplace or the tax office by virtue of a report signed by the taxpayer or the person obligated or his representative.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 27

The tax authority must notify the taxpayer or the person responsible for payment within sixty days.

From the date the taxpayer agrees to the assessments of the competent tax authority, or the issuance of a decision by the appeals committee, or a ruling by the competent court, by any of the means stipulated in

the first paragraph of this article. **Article (46):** The tax

authority has

the right to impose an execution lien for the amount of taxes due based on the returns submitted

by the taxpayer if they are not paid within the legal deadlines, without the need to issue a demand or

notice. The taxpayer's return in this regard shall be

The status is an execution order.

In all cases, seizure may only be effected after notifying the taxpayer by registered letter.

It must be accompanied by proof of receipt unless there is a risk that threatens the collection of the tax debt.

The collection of taxes and other amounts due under tax law shall be governed by administrative

seizure procedures and the provisions stipulated therein. ^y The provisions of Law No. 308 of 1955 shall apply to

it in this Law. Notwithstanding

the provisions of any other law, the provisions of the preceding paragraph shall apply to companies and

establishments regardless of the legal system under which they

are established. **Article (47):**

If the tax authority determines that the public treasury's rights are at risk of being lost, its head

may request the head of the relevant department at the Administrative Court to issue an order, upon

petition, to seize funds sufficient to cover the rights at risk of being lost, regardless of who possesses them.

The funds seized by this order are considered precautionary and may not be disposed of unless ^{She was}

the seizure is lifted by a court ruling, a decision by the head of the tax authority, or after sixty days have

passed from the date of the seizure without notifying the taxpayer of the tax amount according to the applicable law.

To assess the relevant task.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 28

The issuance of a seizure order in accordance with the previous paragraph shall be at the request of the Minister if the taxpayer or the person liable does not have sufficient funds to pay the rights that are at risk of being lost, other than his liquid funds deposited in banks.

The seizure is lifted by a decision of the head of the relevant department at the Administrative Court if the taxpayer or the person obligated to pay deposits with the court treasury an amount sufficient to settle those dues.

To ensure the tax debt is paid once it is definitively determined, the clerk of the court before which the execution proceedings against the property are being conducted must notify the tax authority by registered mail with return receipt requested of the deposit of the list of sale conditions within fifteen days of the deposit date. Furthermore, the clerk of the court before which the sale takes place, as well as anyone conducting the auction, must notify the tax authority by registered mail with return receipt requested of the date of sale of the real estate or movable property fifteen days prior to the sale date.

At least. Any failure or delay in providing the notification stipulated in the two preceding paragraphs.

The person responsible shall be subject to disciplinary action. **Article**

(48): Subject to the provisions of the Law Regulating the Use of Non-Cash Payment Methods issued by Law No. 18 of 2019, the payment of taxes and other amounts shall be made through electronic payment methods specified by a decision of the Minister. **Article (49):** Taxes and other amounts due to the Tax Authority under the Tax

Law shall have priority over all assets of debtors, those obligated to collect them, or those charged with collecting and remitting them to the Tax Authority by law, taking precedence over all other debts except for court expenses. The tax debt shall be payable at the Tax Authority's headquarters and its branches without the need for a demand at the debtor's residence.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 29

(Chapter Two) Offsetting and Discharge of Liability

Article (50):

Offsetting shall take place by force of law between what is due to the taxpayer or the person liable with the under any tax law applied by the Authority or any of the revenue Authority and what is due from him and payable authorities affiliated with the Ministry of Finance. It is prohibited for units of the State administrative apparatus, local administration units, public bodies and other public legal entities, public sector companies and public business sector companies to pay any financial dues to the taxpayer or person liable except after verifying that he is clear of the tax due and other amounts.

The taxpayer, the person liable, or his representative may request the tax authority to issue a certificate stating that he is free of tax and other amounts. The tax authority must issue this certificate within forty days from the date of its request, after verifying that there are no outstanding tax liabilities against him.

(Chapter Three) Tax Exemption

Article (51):

The tax and other amounts due to the authority may be waived, in whole or in part.

The taxpayer or debtor is liable in the following cases: (a)

If he dies without leaving an apparent estate. (b) If it is proven that he has no assets that can be seized. (c) If he is definitively declared bankrupt and the bankruptcy proceedings are closed. (d) If he leaves the country for ten consecutive years without leaving assets that can be seized.

Implementation upon it.

If the taxpayer or the person liable has ended his activity and has assets that can be seized to cover all or some of the dues of the tax authority, then in this case, he or his heirs must have left after the seizure an income that is not less than the exempt bracket according to the tax law.

Article (52):

The exemption stipulated in Article (51) of this Law shall be handled by committees formed by a decision of the Minister or his designee. A decision on the exemption shall be made within one calendar year from the date of submission of the exemption request or its presentation by the competent tax authority. If accepted, the committee's recommendations shall be approved by a decision of the Minister or his designee.

The decision may be withdrawn within the legally prescribed period if it is found to have been based on an incorrect reason.

(Chapter Four) Tax Refund**Article (53):**

Without prejudice to the provisions of Article (34) of this Law, the Tax Authority is obligated to refund any tax previously paid to it, in the cases stipulated in the Tax Law, provided that the refund is made within forty-five days from the date of submitting the application. Otherwise, it shall be liable for a penalty for the delay in refund, provided that the necessary documents for the refund are legally submitted. The credit and discount rate announced by the Central Bank on the first of January is calculated on a basis plus 2%, excluding January preceding the date on which the tax refund is due, in both the month and the pound. All of this is in accordance with the regulations and provisions issued by a decision of the Minister.

Chapter Seven: Tax**Appeal****Procedures (Chapter One):****Methods of****Notification****Article (54):**

A notice sent by registered mail with return receipt requested, or by any other means

receiving the notification by virtue of a signed An electronic means that has legal validity as proof, or

representative, with the same effect as report from the taxpayer or the person responsible or his legal

notification made through legal means, including notifying the person against whom the seizure was made

with a copy of the seizure report.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 31

The declaration is valid whether it is received by the taxpayer or the person obligated to pay from the tax office.

The competent authority or the competent appeals committee, or it is delivered to the establishment's premises or to its chosen address.

In the event that the establishment is closed, or the taxpayer is absent and cannot be notified by any of the aforementioned

methods, or if the taxpayer refuses to receive the notification, this shall be documented in a report prepared by the competent

officer or a member of the competent appeals committee. The first report shall be kept in the taxpayer's or taxpayer's file, the

second affixed to the establishment's premises, and the third posted photo The judicial police authority consists of three parts.

on the notice board of the tax office or committee. Each competent appeals office shall maintain a register in which the

aforementioned reports are recorded on the tax authority's website or the appeals committee's website. If the notification is returned

marked indicating the establishment's non-existence or the taxpayer's or taxpayer's address cannot be

identified, it shall be served in the presence of the Public Prosecutor's Office after conducting the necessary investigations.

The publication in the above manner and the announcement in the presence of the Public Prosecution is considered a procedure that interrupts

the statute of limitations.

(Chapter Two) Appeal

Deadline

Article (55): In

cases where the taxpayer or the person liable is notified of the tax assessment forms by the Authority, the taxpayer or

the person liable may appeal that assessment within thirty days from the date of his knowledge of it, as well as in the cases

stipulated in the third and fourth paragraphs of Article (54) of this Law, or failure to obtain proof of receipt of the data contained in

the general instructions for the post, and the taxpayer or the person liable may appeal the Authority's decision to assess the tax or

the decision of the Appeals Committee, as the case may be, within sixty days from the date of the seizure against him.

If the taxpayer or the person responsible for the tax does not appeal the assessment form within the legally specified

time, the assessment shall be final.

Chapter Eight:

Stages of Tax Appeal

(Section One):

Administrative Stages of Reviewing the Appeal

Article (56):

The Tax Authority shall adjudicate appeals submitted by taxpayers or those liable for tax through internal committees, whose formation, locations, and scope of jurisdiction shall be determined by a decision from the Head of the Authority. An appeal submitted by a taxpayer or those liable for tax against a tax assessment shall be in the form of a document in original and three copies, which shall be deposited with the competent tax office, and one copy shall be given to the taxpayer or those liable for tax. The appeal document must include a precise identification of all points of disagreement as stated in the tax assessment form, and the essential grounds upon which the appeal is based. An appeal that does not include the points of disagreement shall not be considered. The internal committee shall notify the taxpayer or those liable for tax of the date of the scheduled hearing, which shall be held within thirty days from the date of depositing the ^{stab} appeal document. The committee shall notify the taxpayer or the person in charge of the session date by registered letter with return receipt delivering the notification form requested or by any electronic means that has legal validity as evidence, or by to him at the workplace or the office, in accordance with a record signed by the taxpayer or the person in charge or his representative. The competent office shall provide the committee, within fifteen days at most, with the taxpayer or person y in charge file, and the papers and documents, accompanied by a memorandum of response to the grounds of appeal submitted by the taxpayer or the person in charge. The committee shall record in a special register the data of the appeal and a summary of the points of disagreement it contains. The committee shall decide on the appeal within sixty days from the date of receiving the file, papers and documents accompanied by the aforementioned memorandum of response. The committee may extend the deadline for deciding on the appeal for another similar period if it has serious reasons for doing so, which the committee shall state in the minutes of its work.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 33

If the disputes are settled within the aforementioned period, the tax becomes final. Otherwise, the committee shall refer the disputes to the competent appeals committee, attaching to it the opinion of the internal committee regarding them, within thirty days from the date of deciding on these disputes, provided that it notifies the taxpayer of the referral by registered letter with return receipt requested, or by any electronic means that has legal validity as evidence, or by delivering the form to him at the workplace or the tax office by virtue of representative. a report signed by the taxpayer or the person responsible or his

If the thirty-day period expires without the committee referring the dispute to the competent appeals committee, the taxpayer, the person liable, or their legal representative may submit the matter in writing directly to the head of the appeals committee, or by registered mail with return receipt requested, attaching a copy of the appeal petition previously submitted to the tax office, within fifteen days.

period. The head of the committee must, within fifteen days from the date the From the date of expiry of the previously specified matter is presented to him or the letter from the taxpayer or the person responsible for the tax is received, set a date for a hearing to consider the appeal and order the taxpayer's or person responsible's file to be included.

The file shall be referred to the Appeals Committee if the legally prescribed deadline expires without a decision being made on

Deciding on the appeal, mthe appeal, without prejudice to the disciplinary responsibility of the person responsible for the delay or referral to the Appeals Committee, as the case may be, within the prescribed deadlines.

In all cases, the competent tax authority shall be notified of the decision issued by the internal committee within two days of its issuance. If an agreement is reached to settle the dispute, the authority shall assess the tax based on the committee's decision, make the necessary adjustments, and notify the taxpayer within fifteen days of being notified of the committee's decision. **Article (57):** A taxpayer subject to income tax may, within thirty days of receiving the taxable income, object to the deducted taxes by submitting a request to the deducting authority.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 34

This entity must send the application along with its response to the tax authority.

The relevant authority must respond within thirty days of the date of submission. If it fails to do so, the taxpayer may
appeal directly to the competent tax office. This

authority also has the right to object to any resulting tax differences it is notified of.

The examination will take place within thirty days from the date of receiving the notification.

The tax office shall examine the application or objection. If it finds it to be valid, it shall notify the relevant
authority of the tax assessment adjustment. However, if it is not convinced of the validity of the application or
objection, it must refer it to the Appeals Committee in accordance with the provisions of this law, while notifying the
taxpayer or the relevant authority, as the case may be, by registered mail with return receipt requested, or by any
by delivering the notification form to the place of work electronic means that is legally admissible as evidence, or
or the tax office, by means of a record signed by the taxpayer or the person liable for the tax, or their representative,
within thirty days from the date of referral.

If the taxpayer does not have an authority to which they can submit the application stipulated in the first
paragraph of this article, they may submit it to the competent tax office. In this case, the tax office shall refer the
application to the internal committee, as the case may be.

Article (58):

The internal committees stipulated in the first paragraph of Article (56) of this Law shall be formed under
the chairmanship of one of the employees of the Authority at the level of Director General or higher, and with the
membership of two of its employees who have the authority of judicial officers. Each committee shall have a technical
secretariat of a sufficient number of employees of the Authority, and a reserve chairman may be appointed.

Membership in those committees is for a period of y The head of the committee shall replace him if there is a legal impediment

The committee member or its chairman must not have previously considered any general renewable matter, and the
subject matter presented to the committee must be examined or reviewed.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 35

Article (59): If the

taxpayer, the person liable for payment, or their representative fails to attend the scheduled session for considering the appeal, despite being notified in accordance with the provisions of paragraph three of Article (56) of this Law, the Internal Committee shall notify them again. If they or their representative still fail to attend, the Internal Committee shall refer the dispute to the competent Appeals Committee and notify the taxpayer or the person liable for payment accordingly. **Article (60):** The sessions of the Internal Committee shall be confidential, and the proceedings must be recorded in the minutes.

Supported by documents submitted by the financier, the person in charge, or his legal representative, and the commission.

The committee must discuss all points of contention and defenses presented by the taxpayer or the taxpayer, and respond to each of these points. The committee issues its decisions by majority vote, and these decisions must be reasoned, unconditional, and specify the exact amount of tax due and the basis for its calculation. The minutes of the internal committee meeting must be signed by the committee chair, its members, and the taxpayer or the taxpayer or their legal representative. The taxpayer or taxpayer has the right to obtain a copy of the minutes.

A copy of this report will be provided upon its signing.

The books and records that the Technical Secretariat of the Internal Committee must keep are specified.

By decision of the head of the department.

Article (61):

Appeals committees shall be formed by a decision of the Minister, headed by one of the members of the judicial authorities, and with the membership of two employees of the Authority who have the status of judicial police, and two tax experts, one of whom shall be nominated by the Federation of Chambers of Commerce or the Federation of Industries, as the case may be, and the other shall be nominated by the Syndicate of Merchants from among the accountants registered in the register of accountants and auditors of companies whose funds are not in the general register of practitioners of the liberal professions of accounting and auditing, and none of the members of the committee shall have a direct or indirect relationship with the subject or parties of the dispute.

The Minister, or his designee, may appoint reserve members from among the department's employees to committees in cities with only one committee. The original members are considered reserve members for other committees in cities with more than one committee. The appointment of these reserve members to replace absent original members falls under the jurisdiction of the head of the original committee. No member of the committee may have previously considered the subject of the appeal, whether through examination, review, or approval. Membership in these committees for department employees is for a renewable one-year term. A committee meeting is only valid with its full membership. The committee's secretariat is headed by an employee designated by the department. When considering appeals, the committee must observe the following rules:

(a) Listening to the taxpayer or the person responsible for him or his representative, and the representative of the competent tax authority without them having a counted vote.

settled, (b) The obligation to consider the points of contention stipulated in the appeal document that have not been and to the exclusion of others, to consider whichever is later, and it may be extended for another similar period when serious reasons are available to the committee.

(c) The appeal shall be decided within sixty days from the date the appeal file is submitted to the committee or from the date a hearing is scheduled, whichever is later. This period may be extended for a further similar period if the committee has serious grounds for doing so. (d) The committee's decisions shall be reasoned, unconditional, and specify the amount of the compensation.

The tax, and the precise basis for calculating it.

The appeals committees are permanent and administratively subordinate to the Minister directly. A decision is issued by him specifying them, their headquarters, their territorial jurisdiction, and the rewards of their members.

The committee is obligated to maintain the records and books specified by a decision of the Minister. **Article (62):**

The appeals

committees are competent to adjudicate disputes between the taxpayer or the person liable for payment.

The interest specified in the appeal document.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 37

notify both the taxpayer or the tax authority of the date of the appeal hearing. The committee shall at least ten days in advance by registered mail with return receipt requested, or by any legally admissible taxpayer's or tax authority's workplace or electronic means, or by delivering the notification form to the office, in a record signed by the taxpayer or their representative. The committee may request any data or documents it deems necessary from both the tax authority and the taxpayer or the taxpayer. The taxpayer or the taxpayer must appear before the committee in person or through their representative; otherwise, the committee shall decide on the appeal based on the submitted documents.

Article (63):

The sessions of the Appeals Committees shall be confidential. The Chairman of the Committee shall appoint a rapporteur for each case from among the two members appointed by the Tax Authority. Each rapporteur shall study the appeals referred to him and all related defenses, and prepare a draft decision. The draft decision shall be discussed with the remaining members of the Committee after they have reviewed the appeal documents. The Appeals Committee must observe the general principles and procedures of litigation. **Article (64):** The Committee shall issue its decisions by majority vote, within the limits of the Tax Authority's discretion and the taxpayer's or obligated party's requests. The tax assessment shall be amended according to the Committee's decision. If the tax has not yet been collected, it shall be collected pursuant to this decision. In all cases, the Chairman of the Committee and the Secretary must sign the Committee's decisions within a maximum of one week from the date of their issuance. The tax authority and the taxpayer shall be notified of the committee's decision by registered mail with return receipt requested, or by any legally admissible electronic means, or by delivering the decision to the taxpayer's workplace or office, as evidenced by a record signed by the taxpayer or their representative. The tax is due and payable based on the committee's decision, and appealing the decision before the competent court does not preclude the collection of the tax or the taking of administrative seizure

(Chapter Two)

The judicial stage of considering the appeal

Article (65):

Both the interest-holder and the financier or taxpayer have the right to appeal the Appeals Committee's decision before the court.

The competent administrative judiciary shall issue its decision within sixty days from the day following the date of notification of the decision.

Notwithstanding the provisions of the State Council Law issued by Law No. 47 of 1972,

Tax claims and appeals without referral to the State Commissioners Authority, y The chapter will be

The court will consider these cases and appeals in a closed session, and the ruling therein will be permanent.

Face speed.

(Chapter Three)

Request for reconciliation in the appeal

Article (66):

The taxpayer, the person liable for tax, or their representative may request a settlement of the disputed

matters under appeal by submitting a request to the competent tax office before the appeal is reserved for a

decision. The tax office must notify the committee of this request and decide on it within thirty days.

From the date of its submission. Upon being notified of the submission of the application, the Appeals Committee

shall suspend its consideration until it is notified by the tax office of the action taken. In all cases, the competent

tax office must notify the Appeals Committee within five working days from the date of expiry of the thirty-day

period of the action taken on the application. If the tax office and the taxpayer or the person obligated agree to

settle the dispute, the Appeals Committee shall record this settlement in a report signed by both parties.

This report shall be considered an executive document.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 39

(Chapter Four)

Reconsidering the Final Link

Article (67):

The Tax Authority shall correct the final assessment based on the valuation or amendment of the competent tax office or the decision of the Appeals Committee, upon a request submitted by the concerned party within five years from the date on which the assessment became final, in the following cases: (a) If the concerned party does not engage in any activity on which the tax was assessed. (b) If the tax was assessed on an activity legally exempt from it. (c) If the tax was assessed on income not subject to tax, unless the law stipulates otherwise. (d) Failure to apply legally mandated exemptions. (e) Error in applying the tax rate. (f) Error in the type of tax levied on the taxpayer. (g) Failure to carry forward losses contrary to the provisions of the law. (h) Failure to deduct taxes that must be deducted. (i) Failure to deduct the rental value of properties leased by the establishment. (j) Failure to deduct donations for which the legal conditions for deduction have been met. (k) Charging some tax years with revenues or expenses pertaining to other years. (l) Imposing the same tax on the same revenues more than once. (m) Any other cases added by decision of the Minister. (n) In general, in cases where the concerned party obtains conclusive documents and papers that would render the assessment incorrect. One or more committees called the "Reconsideration Committee" are responsible for reviewing the aforementioned requests. Among its members is a member of the State Council with the rank of Assistant Advisor in the final assessment, at least, nominated by the Council. A decision from the head of the department is issued to form it, determine its jurisdiction and headquarters, and the committee's decision is not effective until it is approved by the head of the department. The person concerned, the financier, or the person responsible, as the case may be, shall be notified of the assignment. The taxes are determined by the committee's decision, and the tax office must adjust the assessment accordingly.

Chapter Nine:

Crimes and Punishments

Article (68):

Without prejudice to any more severe penalty stipulated in the Penal Code or any other law,

The crimes listed in the following articles shall be punishable by the penalties stipulated therein. **Article**

(69): The fine

shall not exceed fifty thousand Egyptian pounds Anyone who delays submitting the tax return and paying

the tax within the periods specified in Article (31) shall be punished

with a fine of not less than three thousand pounds and with respect to the tax and other amounts due.

From this law, for a period not exceeding sixty days.

(b) Submitting false information in the tax return if the tax liability is higher than stated therein. (c)

Obstructing tax authority employees from performing their duties or exercising their powers of supervision,

inspection, examination, review, requesting or reviewing documents. (d) Failing to comply with the

provisions of Articles (6, 7, 8, 9, 11, 12, 13, 14, 15, 21, 29, and 32, paragraphs one and two) of this Law.

The penalty, both minimum and maximum, shall be tripled in case of

recidivism. **Article (70):** Failure to submit the tax return stipulated in Article (31) of this Law for

a period

exceeding sixty days from the date of expiry of the deadlines specified for its submission shall be

punishable by a fine of not less than five thousand pounds and not exceeding two hundred thousand pounds. The

penalty stipulated in the first paragraph of this Article shall be doubled in case of a

repeat offense within three years. **Article (71):** Anyone who violates the provisions of Articles (24, 28, /35,

paragraphs one and two, /37, paragraphs one

and four, /38,

paragraphs one, two, and three) of this Law shall be punished by a fine of not less than twenty thousand

pounds and not exceeding one hundred thousand pounds. Anyone who fails to maintain paper or electronic books

and records within the legally prescribed period shall be punished by a fine not exceeding five thousand pounds.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 41

Article (72):

Violating Article (20) of this Law shall be punishable by imprisonment for a period of not less than one year and not exceeding three years, and by a fine of not less than fifty thousand pounds and not exceeding two hundred and fifty thousand pounds, or by one of these two

penalties. **Article (73):** In the event of any act of tax evasion committed by one of the legal entities stipulated in the Tax Law, the person responsible shall be the responsible partner, manager, managing director, or chairman of the board of directors who undertakes the actual management, as the case may be, provided that it is proven that he was aware of it and that his breach of the duties imposed on him by that management contributed to the commission

of the crime. **Article (74):**

No criminal proceedings may be initiated for the crimes stipulated in this law or the tax law, nor may any investigative measures be taken thereunder, except upon a written request from the Minister or his

designee. **Article (75):**

The Minister or his designee may settle the crimes stipulated in this Law or the Tax Law. Anyone wishing to settle must pay, before criminal proceedings are initiated, an amount equivalent to (100%) of the tax dues according to this Law or

Payment shall be made to the treasury of the department or to whomever the y the Tax Law.

minister authorizes to do so.

The right to reconciliation is not forfeited by filing a criminal case with the competent court if

' y Payment of (150%) of the value of the tax dues according to this law or the tax law before

a judgment is issued on the matter. If a final judgment is issued, reconciliation is permissible in

return for payment of (175%) of the value of the tax dues according to this law or the tax law.

Article (76):

The Minister, or his designee, may settle tax offenses committed by an accountant in accordance with the Tax Law, provided that the accountant pays compensation not less than the minimum fine stipulated therein and not exceeding the maximum

fine. **Article (77):**

Reconciliation results in the termination of the criminal case and the cancellation of all consequences arising from it, including the imposed penalty. The Public Prosecution orders the suspension of the execution of the penalty if reconciliation takes place during its execution.

Chapter Ten:

Final Provisions

Article (78):

The Tax Authority may exchange information for tax purposes with the tax authorities of countries with which Egypt has international tax agreements, within the limits stipulated by the provisions of these agreements. It may also conclude protocols or agreements with governmental bodies, public bodies, unions, associations, and other legal entities that permit the exchange of information between them for the purposes of applying the law, provided that this does not infringe upon the commercial, industrial, or professional secrets of the taxpayer.

Article (79): The Public Prosecution may, in cases it deems appropriate, instruct the Ministry of Finance to notify governmental bodies, banks, and public sector and public business sector companies with which a taxpayer who is referred for investigation or trial for one of the tax evasion crimes under investigation or trial deals. These bodies, banks, and companies shall suspend dealings with the taxpayer until the investigation is closed, a verdict of temporarily acquittal is issued, or the criminal case is terminated by settlement.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020 43

Article (80):

The Tax Authority may publish lists of the names of taxpayers or those liable for taxes against whom final judgments

have been issued imposing a penalty that deprives them of their liberty in one of the tax evasion crimes.

It is published in at least two widely circulated daily newspapers.

Article (81):

This law concerns taxes levied by the tax authority.

mThe rules apply

Real estate, in a manner that does not conflict with the provisions of the laws regulating these taxes, by decree.

From the Cabinet, based on the Minister's proposal, upon completion of the development of the department

The aforementioned and its mechanization.

Official Gazette – Issue No. 42 bis (C) of 19 October 2020

44

National Library deposit number 65/2020

General Authority for Government Printing Offices

1209 – 19/10/2020 – 2020 / 25322